

Akash Ahirwar vs Smt. Ragini Dadoriya Ahirwar on 17 June, 2026

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2026:CGHC:24497

NAFR

HIGH COURT OF CHHATTISGARH AT BILASPUR

WP227 No. 653 of 2026

1 - Akash Ahirwar S/o Shri M.L. Ahirwar Aged About 31 Years R/o Green City Colony, House No. 18, Raigarh, Tah And Distt. Raigarh (C.G.)
... Petitioner(s)

versus

1 - Smt. Ragini Dadoriya Ahirwar W/o Shri Akash Ahirwar, D/o Shri O.P. Dadoriya Aged About 30 Years R/o Royal Green City, Chhatamuda, Bypass Road Raigarh Tah. And Distt. Raigarh (C.G.)
... Respondent(s)

For Petitioner(s) : Mr. Manoj Kumar Sinha, Advocate For Respondent(s) : None present.

(Hon'ble Shri Justice Ravindra Kumar Agrawal) Order on Board 17/06/2026 The present petition has been filed under Article 227 of the Constitution of India assailing the order dated 13.03.2026 passed by the learned Judge, Family Court, Raigarh in Civil Suit No. 194/2025, whereby the application preferred by the respondent-wife under Section 24 of the Hindu Marriage Act, 1955 has been partly allowed and the petitioner-husband has been directed to pay maintenance pendente lite of 5,000/- per month along with one-time litigation expenses of 7,000/- and travelling expenses of 100/- on each date of hearing.

2. Learned counsel for the petitioner submits that the marriage between the parties was solemnized on 20.02.2023 and out of the wedlock a child was born on 22.02.2024. Subsequently, matrimonial discord arose between the parties, leading the petitioner/husband to institute proceedings under Section 13(A) of the Hindu Marriage Act, 1955 seeking dissolution of marriage. During the pendency of the said proceedings, the respondent-wife moved an application under Section 24 of the Act seeking maintenance pendente lite and litigation expenses, which has culminated in the impugned order.

3. It is contended that the respondent-wife is working as a Staff Nurse at Primary Health Centre, Kirodimal Nagar, Raigarh and is earning 18,500/- per month. It is further submitted that the petitioner is engaged in the work of repairing air-conditioners, refrigerators and other electronic appliances through a small establishment (shop) and is earning a meagre income. According to the petitioner, he is also burdened with the responsibility of maintaining his aged parents and other family liabilities. It is thus argued that the learned Family Court has failed to appreciate the financial status of the parties in its proper perspective and has erroneously awarded maintenance pendente lite in favour of a gainfully employed spouse. Thus, the impugned order is stated to be unsustainable in law and liable to be set aside.

4. Having bestowed anxious consideration to the submissions advanced on behalf of the petitioner and upon perusal of the material available on record, this Court finds that the relationship of husband and wife between the parties is undisputed. It is also not in dispute that the minor child born out of the wedlock is presently residing with the respondent-wife. The affidavit filed by the respondent-wife discloses her monthly income to be approximately 18,500/-, whereas the petitioner has disclosed his monthly income to be around 35,000/-.

5. Section 24 of the Hindu Marriage Act, 1955, provided for grant of maintenance pendente lite and the expenses of the proceeding and according to the said provision, in any proceeding under the Hindu Marriage Act, 1955, it appears to the Court that either the wife or the husband, as the case may be, has not independent income sufficient for her or his support and the necessary expenses of the proceeding, it may, on the application of the wife or the husband ordered the respondent to pay to the petitioner the expenses the proceeding and monthly during the proceeding such sum as, having regard to the petitioner's own income and the income of the respondent, it may seem to the Court to be reasonable.

6. The objective of the maintenance pendente lite and expenses under Section 24 of the Hindu Marriage Act, 1955, is primarily to provide financial assistance to the claimant's spouse in order for them to carry on with the proceedings and maintain themselves. The provision of Section 24 is not intended to equalize the income of the spouses but rather to prevent one from suffering due to a lack of financial support during divorce or other proceedings. Where one spouse has no source of income or support to maintain themselves, the court has to make an order on the basis of the income of the other spouse. The true objective of Section 24 is to give financial assistance to the spouse who requires it and not to equalize the incomes of the spouses.

7. The Family Court has the discretion in passing an order regarding the maintenance pendente lite amount under Section 24 of the Hindu Marriage Act, 1955, that a spouse may be required to pay to the other based on reasonable grounds. In order to exercise this discretion, the court considers the income of the spouse who has made the application for maintenance pendente lite and the income of the other spouse who is required to pay such interim maintenance and expenses. In the case of "Rajnish v. Neha and Another", 2021 (2) SCC 324, the Apex Court has observed the criteria for determining the quantum of maintenance. It has been observed that:-

77. The objective of granting interim/permanent alimony is to ensure that the dependent spouse is not reduced to destitution or vagrancy on account of the failure of the marriage, and not as a punishment to the other spouse. There is no straitjacket formula for fixing the quantum of maintenance to be awarded.

78. The factors which would weigh with the court *inter alia* are the status of the parties;

reasonable needs of the wife and dependent children; whether the applicant is educated and professionally qualified; whether the applicant has any independent source of income; whether the income is sufficient to enable her to maintain the same standard of living as she was accustomed to in her matrimonial home; whether the applicant was employed prior to her marriage; whether she was working during the subsistence of the marriage; whether the wife was required to sacrifice her employment opportunities for nurturing the family, child rearing, and looking after adult members of the family; reasonable costs of litigation for a non-working wife.

79. In *Manish Jain v. Akanksha Jain*, this Court held that the financial position of the parents of the applicant wife, would not be material while determining the quantum of maintenance. An order of interim maintenance is conditional on the circumstance that the wife or husband who makes a claim has no independent income, sufficient for her or his support. It is no answer to a claim of maintenance that the wife is educated and could support herself. The court must take into consideration the status of the parties and the capacity of the spouse to pay for her or his support. Maintenance is dependent upon factual situations; the court should mould the claim for maintenance based on various factors brought before it.

80. On the other hand, the financial capacity of the husband, his actual income, reasonable expenses for his own maintenance, and dependent family members whom he is obliged to maintain under the law, liabilities if any, would be required to be taken into quantum living of the husband, as well as the spiralling inflation rates and high costs of maintenance to be paid. The court must have due regard to the standard of *ipso facto* does not absolve him of his moral duty to maintain his wife if he is living. The plea of the husband that he does not possess any source of income able-bodied and has educational qualifications.

81. A careful and just balance must be drawn between all relevant factors. The test for determination of maintenance in matrimonial disputes depends on the financial status of the respondent, and the standard of living that the amount awarded must be reasonable and realistic, and avoid either of the two applicant was accustomed to in her matrimonial home. The maintenance which becomes oppressive and unbearable for the respondent, nor should it be extremes i.e. maintenance awarded to the wife should neither be so extravagant so meagre that it drives the wife to penury. The sufficiency of the quantum has to be adjudged so that the wife is able to maintain herself with reasonable comfort."

8. In the case of "*Bharat Hegde v. Saroj Hegde*" 2007 SCC Online Del 622, the Delhi High Court has observed in its order that:-

"8. Unfortunately, in India, parties do not truthfully reveal their income. For self employed persons or persons employed in the unorganized sector, truthful income never surfaces. Tax avoidance is the norm. Tax compliance is the exception in this country. Therefore, in determining interim maintenance, there cannot be mathematical exactitude. The court has to take a general view.

From the various judicial precedents, the under noted 11 factors can be culled out, which are to be taken into consideration while deciding an application under Section 24 of the Hindu Marriage Act. The same are.

"1. Status of the parties.

2. Reasonable wants of the claimant.

3. The independent income and property of the claimant.

4. The number of persons, the non applicant as to maintain.

5. The amount should aid the applicant to live in a similar life style as he/she enjoyed in the matrimonial home.

6. Non-applicant's liabilities, if any.

7. Provisions for food, clothing, shelter, education, medical attendance and treatment etc. of the applicant.

8. Payment capacity of the non applicant.

9. Some guess work is not ruled out while estimating the income of the non applicant when all the sources or correct sources are not disclosed.

10. The non applicant to defray the cost of litigation.

11. The amount awarded u/s. 125 Cr.PC is adjustable against the amount awarded u/s.24 of the Act."

9. In the case of "Jayant Bhargava v. Priya Bhargava" 2011 SCC Online Del 1651, the Delhi High Court further held that:-

"12. It is settled position of law that a wife is entitled to live in a similar status as was enjoyed by her in her matrimonial home. It is the H duty of the courts to ensure that it should not be a case that one spouse lives in a life of comfort and luxury while the other spouse lives a life of deprivation, poverty. During the pendency of divorce proceedings the parties should be able to maintain themselves and should be

sufficiently I entitled to be represented in judicial proceedings. If in case the party is unable to do so on account of insufficient income, the other spouse shall be liable to pay the same. (See Jasbir Kaur Sehgal (Smt.) v. District Judge, Dehradun & Others, reported in (1997) 7 Supreme Court Cases 7).

13. A Single Judge of this Court in the case of Bharat Hegde v. Saroj Hegde, reported in 140 (2007) DLT 16 has culled out 11 factors, which can be taken into consideration for deciding the application under Section 24 of Hindu Marriage Act.

14. Further it has been noticed by the Courts that the tendency of the spouses in proceedings for maintenance is to not truthfully disclose their true income. However, in such cases some guess work on the part of Court is permissible.

15. The Supreme Court of India in the case of Jasbir Kaur (Smt.) (supra), has also recognized the fact that spouses in the proceedings for maintenance do not truthfully disclose in their true income and therefore some guess work on the part of the Court is permissible. Further the Supreme Court has also observed that "considering the diverse claims made by the parties one inflating the income and the other suppressing an element of conjecture and guess work does enter for arriving at the income of the husband. It cannot be done by any mathematical precision".

16. Although there cannot be an exhaustive list of factors, which are to be considered in guessing the income of the spouses, but the order based on guess work cannot be arbitrary, whimsical or fanciful. While guessing the income of the spouse, when the sources of income are either not disclosed or not correctly disclosed, the Court can take into consideration amongst others the following factors:

- (i) Life style of the spouse;
- (ii) The amount spent at the time of marriage and the manner in which marriage was performed;
- (iii) Destination of honeymoon;
- (iv) Ownership of motor vehicles;
- (v) Household facilities;
- (vi) Facility of driver, cook and other help;
- (vii) Credit cards;
- (viii) Bank account details; Jayant Bhargava v. Priya Bhargava (G.S. Sistani, J.)
- (ix) Club Membership;

- (x) Amount of Insurance Premium paid;
- (xi) Property or properties purchased;
- (xii) Rental income;
- (xiii) Amount of rent paid;
- (xiv) Amount spent on travel/ holiday;
- (xv) Locality of residence;
- (xvi) Number of mobile phones; (xvii) Qualification of spouse; (xviii) School(s) where the child or children are studying when parties were residing together;
- (xix) Amount spent on fees and other expenses incurred;
- (xx) Amount spend on extra-curricular activities of children when parties were residing together;
- (xxi) Capacity to repay loan

17. These are some of the factors, which may be considered by any court in guesstimating or having a rough idea or to guess the income of a spouse. It has repeatedly been held by the Courts that one cannot ignore the fact that an Indian woman has been given an equal status under Articles 14 and 16 of the Constitution of India and she has a right to live in dignity and according to the status of her husband. In this case, the stand taken by the respondent with respect to his earning is unbelievable."

10. The contention advanced on behalf of the petitioner that the respondent-wife is disentitled to maintenance solely on the ground that she is gainfully employed does not merit acceptance. The learned Family Court, while awarding maintenance pendente lite to the tune of 5,000/- per month, has duly considered the pleadings of the parties, the documents placed on record, and the principles enunciated by the Apex Court in *Rajnesh v. Neha & Another* (supra). The learned Court has further taken into account the financial capacity of the husband, the respective incomes of the parties, the prevailing cost of living, and the standard of life enjoyed by them. Upon a holistic consideration of the aforesaid factors, the award of maintenance pendente lite at 5,000/- per month was found to be just, fair and reasonable.

11. Applying the aforesaid principles to the facts of the present case, this Court finds that although the petitioner may be required to maintain his aged parents, the respondent-wife is equally burdened with the responsibility of maintaining and upbringing the minor child who is residing with her. The income disclosed by the petitioner is substantially higher than that of the respondent-wife. In such circumstances, the direction issued by the learned Family Court requiring the petitioner to pay maintenance pendente lite of 5,000/- per month, together with one-time

litigation expenses of 7,000/- and travelling expenses of 100/- per date of hearing, cannot be said to be excessive, arbitrary or disproportionate.

12. Accordingly, in view of the law laid down by the Apex Court in Rajnesh v. Neha & Another, this Court is of the considered opinion that the learned Family Court has exercised its discretion judiciously and in accordance with settled principles of law. The scope of interference under Article 227 of the Constitution of India in such matters is limited. Unless the order impugned suffers from patent illegality, perversity or jurisdictional error, this Court would be slow in substituting its own view for that of the Family Court. Upon a careful scrutiny of the impugned order, no such infirmity is discernible warranting interference by this Court. Consequently, the petition being devoid of merits, deserves to be and is hereby dismissed.

Sd/-

(Ravindra Kumar Agrawal)
Judge

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